

22STCV21020 22STCV21020

County: los-angeles

Division: Civil Law and Motion

Department: 734

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Case Number: 22STCV21020 Hearing Date: August 27, 2026 Dept: 734

The following tentative ruling is issued pursuant to Rule of Court 3.1308 at 2:55 PM on August 26, 2026.

Rule of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No later than 4:00 p.m. on August 26, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff alleges that he was terminated for complaining about wage and hour violations. The Court entered default judgment against Defendants Ritz Plumbing, Inc. and Reza Vandt sued herein as Doe 1.

Plaintiff/Judgment Creditor Alex Mora moves for a charging order against judgment debtor Reza Vandt's interest in LLC and an order assignment payment rights of judgment debtor Reza Vandt.

TENTATIVE RULING

CONDITIONED UPON Plaintiff/Judgment Creditor demonstrating that notice of this motion was served upon Judgment Debtor and the LLCs at the correct address, for a charging order and related relief is GRANTED.

CONDITIONED UPON Plaintiff/Judgment Creditor demonstrating that notice of this motion was served upon Judgment Debtor at the correct address, Plaintiff/Judgment Creditor Alex Mora's motion for an order assignment payment rights of judgment debtor Reza Vandt is GRANTED as to RITZ RESTORATION INC.; RITZ ROOTER INC.; ROOFTOPPERS, INC.; JET SPEED PLUMBING INC.; REAL PROPERTY AT: 25016 Narbonne Ave, Lomita, CA 90717; REAL PROPERTY AT: 2308 Donella Cir, Los Angeles, CA 90077; REAL PROPERTY AT: 3303 Palo Vista Dr, Rancho Palos Verdes, CA 90275; REAL PROPERTY AT: 26326 Ocean View Ave, Carmel, CA 93923; and SNAP PLUMBING INC.

The motion is DENIED as to non-judgment debtor LLCs: RV ENTERPRISE, LLC; RVSS LLC; and GRAMERCY AUTO SERVICE LLC. It appears that Plaintiff/Judgment Creditor must move for a charging order in accordance with Civ. Proc. Code §§ 699.720, 708.310 as to these LLCs.

Plaintiff is to submit a revised order specifying the person or entity who has the obligation to comply with the assignment order as to payments which come due as to the real property.

ANALYSIS

Motion For Charging Order

Discussion

Plaintiff/Judgment Creditor Alex Mora moves for a charging order against judgment debtor Reza Vandt's interest in LLC as follows:

(1) An order charging judgment debtor REZA VANDT's ("Debtor") interest in the following Limited Liability Companies:

- RV ENTERPRISE, LLC
- RVSS LLC
- GRAMERCY AUTO SERVICE LLC (Referred to collectively hereafter as "the LLCs")

with the unpaid balance of the judgment entered in this action which totals over \$535,155.57, plus costs and interest accrued thereon at the rate of 10% per annum, including daily accruing interest;

(2) an order directing the LLCs and members thereof to provide certain accountings and evidence of Debtor's ownership interest;

(3) an order restraining the LLCs from transferring or otherwise taking action to waste or devalue Debtor's interest; and

(4) an order directing the LLCs to pay any money, property, or other payment due or to become due as a distribution from the LLCs, or each of them, to Debtor, or to any designee or third party at the direction of Debtor, directly to Creditor instead through Creditor's Attorney Richard O. Evanns, at 3731 Wilshire Blvd., Suite 514, Los Angeles, CA 90010. Such payments due to Debtor shall be paid to Creditor until the total amount of the judgment outstanding with interest and costs thereon, is paid in full.

Civ. Proc. Code, § 699.720 (a)(2) provides:

(a) The following types of property are not subject to execution:

. . .

(2) The interest of a partner in a partnership or member in a limited liability company if the partnership or the limited liability company is not a judgment debtor.

(Civ. Proc. Code § 699.720.)

However, Civ. Proc. Code, § 708.310, provides:

If a money judgment is rendered against a partner or member but not against the partnership or limited liability company, the judgment debtor's interest in the partnership or limited liability company may be applied toward the satisfaction of the judgment by an order charging the judgment debtor's interest pursuant to Section 15907.03, 16504, or 17705.03 of the Corporations Code.

(Civ. Proc. Code § 708.310.)

Corporations Code § 17705.03 provides:

(a) On application by a judgment creditor of a member or transferee, a court may enter a charging order against the transferable interest of the judgment debtor for the unsatisfied amount of the judgment. A charging order constitutes a lien on a judgment debtor's transferable interest and requires the limited liability company to pay over to the person to which the charging order was issued any distribution that would otherwise be paid to the judgment debtor.

(b) To the extent necessary to effectuate the collection of distributions pursuant to a charging order in effect under subdivision (a), the court may do any of the following:

(1) Appoint a receiver of the distributions subject to the charging order, with the power to make all inquiries the judgment debtor might have made.

(2) Make all other orders necessary to give effect to the charging order.

(3) Upon a showing that distributions under a charging order will not pay the judgment debt within a reasonable time, foreclose the lien and order the sale of the transferable interest. The purchaser at the foreclosure sale obtains only the transferable interest, does not thereby become a member, and is subject to Section 17705.02.

(c) At any time before foreclosure under paragraph (3) of subdivision (b), the member or transferee whose transferable interest is subject to a charging order under subdivision (a) may extinguish the charging order by satisfying the judgment and filing a certified copy of the satisfaction with the court that issued the charging order.

(d) At any time before foreclosure under paragraph (3) of subdivision (b), a limited liability company or one or more members whose transferable interests are not subject to the charging order may pay to the judgment creditor the full amount due under the judgment and thereby succeed to the rights of the judgment creditor, including the charging order.

(e) This title does not deprive any member or transferee of the benefit of any exemption laws applicable to the member's or transferee's transferable interest.

(f) This section provides the exclusive remedy by which a person seeking to enforce a judgment against a member or transferee may, in the capacity of judgment creditor, satisfy the judgment from the judgment debtor's transferable interest.

(Corp. Code § 17705.03 [bold emphasis added].)

(a) A lien on a judgment debtor's interest in a partnership or limited liability company is created by service of a notice of motion for a charging order on the judgment debtor and on either of the following:

(1) All partners or the partnership.

(2) All members or the limited liability company.

(b) If a charging order is issued, the lien created pursuant to subdivision (a) continues under the terms of the order. If issuance of the charging order is denied, the lien is extinguished.

(Code Civ. Proc. § 708.320.)

Plaintiff/Judgment Creditor has demonstrated that an order requiring the entities to account for monies due to the creditors is warranted. Plaintiff/Judgment

Creditor provides the terms of such accounting in the Proposed Order.

Per the Declaration of Luke P. Sheldon, Plaintiff/Judgment Creditor has made a sufficient showing that it is entitled to the relief sought under Corp. Code §§ 708.310 and 17705.03.

The motion for a charging order and related relief is GRANTED.

Motion For Assignment Order and Order Restraining Judgment Debtor

Discussion

Plaintiff/Judgment Creditor Alex Mora moves for an order assignment payment rights of judgment debtor Reza Vandt as follows:

(1) An order assigning to Creditor, to the extent necessary to satisfy the judgment entered in this case, the rights of judgment debtor REZA VANDT ("Debtor") to payments due or to become due from certain sources, including but not limited to the following:

- RV ENTERPRISE, LLC

- RVSS LLC

- RITZ PLUMBING, INC.
- RITZ RESTORATION INC.
- RITZ ROOTER INC.
- ROOFTOPPERS, INC.
- JET SPEED PLUMBING INC.
- REAL PROPERTY AT: 25016 Narbonne Ave, Lomita, CA 90717
- REAL PROPERTY AT: 2308 Donella Cir, Los Angeles, CA 90077
- REAL PROPERTY AT: 3303 Palo Vista Dr, Rancho Palos Verdes, CA 90275
- REAL PROPERTY AT: 26326 Ocean View Ave, Carmel, CA 93923
- GRAMERCY AUTO SERVICE LLC
- SNAP PLUMBING INC.
- Any and all other Persons or Entities from whom payments are due or coming due to Debtor

(2) An order restraining Debtor from the sale, transfer, assignment, or any other transfer or alienation of the rights to payment to be assigned pursuant to Code Civ. Proc. § 708.520(a);

(3) An order directing Debtor and all Obligors served with the Order to pay all money now due or to become due in the future under the assignment order directly to Creditor until the amount remaining due on the judgment, including interest, is paid in full; and

(4) An order directing obligors to provide a monthly accounting and/or statement of all funds due or to become due and all funds paid by any Obligor to Debtor or to third parties for their benefit, as authorized under Code Civ. Proc. § 187.

There is an unpaid balance of the judgment entered in this action which totals over \$535,155.57, plus costs and interest accrued thereon at the rate of 10% per annum, including daily accruing interest;

Civ. Proc. Code, § 708.510 provides:

(a) Except as otherwise provided by law, upon application of the judgment creditor on noticed motion, the court may order the judgment debtor to assign to the judgment creditor or to a receiver appointed pursuant to Article 7 (commencing with Section

708.610) all or part of a right to payment due or to become due, whether or not the right is conditioned on future developments, including but not limited to the following types of payments:

(1) Wages due from the federal government that are not subject to withholding under an earnings withholding order.

(2) Rents.

(3) Commissions.

(4) Royalties.

(5) Payments due from a patent or copyright.

(6) Insurance policy loan value.

(b) The notice of the motion shall be served on the judgment debtor. Service shall be made personally or by mail.

(c) Subject to subdivisions (d), (e), and (f), in determining whether to order an assignment or the amount of an assignment pursuant to subdivision (a), the court may take into consideration all relevant factors, including the following:

(1) The reasonable requirements of a judgment debtor who is a natural person and of persons supported in whole or in part by the judgment debtor.

(2) Payments the judgment debtor is required to make or that are deducted in satisfaction of other judgments and wage assignments, including earnings assignment orders for support.

(3) The amount remaining due on the money judgment.

(4) The amount being or to be received in satisfaction of the right to payment that may be assigned.

(d) A right to payment may be assigned pursuant to this article only to the extent necessary to satisfy the money judgment.

(e) When earnings or periodic payments pursuant to a pension or retirement plan are assigned pursuant to subdivision (a), the amount of the earnings or the periodic payments assigned shall not exceed the amount that may be withheld from a like amount of earnings under Chapter 5 (commencing with Section 706.010) (Wage Garnishment Law).

(f) Where a specific amount of the payment or payments to be assigned is exempt by another statutory provision, the amount of the payment or payments to be assigned pursuant to subdivision (a) shall not exceed the amount by which the payment or payments exceed the exempt amount.

(Code Civ. Proc. § 708.510 [bold emphasis added].)

In failing to file an opposition, Judgment Debtor has not made any showing as to the factors set forth in Code Civ. Proc. § 708.510(c)(1) & (2).)

Civ. Proc. Code, § 708.520 provides:

(a) When an application is made pursuant to Section 708.510 or thereafter, the judgment creditor may apply to the court for an order restraining the judgment debtor from assigning or otherwise disposing of the right to payment that is sought to be assigned. The application shall be made on noticed motion if the court so directs or a court rule so requires. Otherwise, it may be made ex parte.

(b) The court may issue an order pursuant to this section upon a showing of need for the order. The court, in its discretion, may require the judgment creditor to provide an undertaking.

(c) The court may modify or vacate the order at any time with or without a hearing on such terms as are just.

(d) The order shall be personally served upon the judgment debtor and shall contain a notice to the judgment debtor that failure to comply with the order may subject the judgment debtor to being held in contempt of court.

(Civ. Proc. Code, § 708.520 [bold emphasis added].)

However, Civ. Proc. Code, § 699.720 (a)(2) provides:

(a) The following types of property are not subject to execution:

. . .

(2) The interest of a partner in a partnership or member in a limited liability company if the partnership or the limited liability company is not a judgment debtor.

(Civ. Proc. Code § 699.720 [bold emphasis added].)

Nonetheless, Civ. Proc. Code, § 708.310, provides:

If a money judgment is rendered against a partner or member but not against the partnership or limited liability company, the judgment debtor's interest in the partnership or limited liability company may be applied toward the satisfaction of the judgment by an order charging the judgment debtor's interest pursuant to Section 15907.03, 16504, or 17705.03 of the Corporations Code.

(Civ. Proc. Code § 708.310 [bold emphasis added].)

Corporations Code § 17705.03 provides:

(a) On application by a judgment creditor of a member or transferee, a court may enter a charging order against the transferable interest of the judgment debtor for the unsatisfied amount of the judgment. A charging order constitutes a lien on

a judgment debtor's transferable interest and requires the limited liability company to pay over to the person to which the charging order was issued any distribution that would otherwise be paid to the judgment debtor.

(b) To the extent necessary to effectuate the collection of distributions pursuant to a charging order in effect under subdivision (a), the court may do any of the following:

(1) Appoint a receiver of the distributions subject to the charging order, with the power to make all inquiries the judgment debtor might have made.

(2) Make all other orders necessary to give effect to the charging order.

(3) Upon a showing that distributions under a charging order will not pay the judgment debt within a reasonable time, foreclose the lien and order the sale of the transferable interest. The purchaser at the foreclosure sale obtains only the transferable interest, does not thereby become a member, and is subject to Section 17705.02.

(c) At any time before foreclosure under paragraph (3) of subdivision (b), the member or transferee whose transferable interest is subject to a charging order under subdivision (a) may extinguish the charging order by satisfying the judgment and filing a certified copy of the satisfaction with the court that issued the charging order.

(d) At any time before foreclosure under paragraph (3) of subdivision (b), a limited liability company or one or more members whose transferable interests are not subject to the charging order may pay to the judgment creditor the full amount due under the judgment and thereby succeed to the rights of the judgment creditor, including the charging order.

(e) This title does not deprive any member or transferee of the benefit of any exemption laws applicable to the member's or transferee's transferable interest.

(f) This section provides the exclusive remedy by which a person seeking to enforce a judgment against a member or transferee may, in the capacity of judgment creditor, satisfy the judgment from the judgment debtor's transferable interest.

(Corp. Code § 17705.03.)

Here, only Ritz Plumbing, Inc. is a judgment debtor (along with Reza Vandi) identified in the Judgment. Aside from Ritz Plumbing, Inc. an assignment of payment rights is only appropriate as to the following entities or properties pursuant to § 708.510(a). RITZ RESTORATION INC.; RITZ ROOTER INC.; ROOFTOPPERS, INC.; JET SPEED PLUMBING INC.; REAL PROPERTY AT: 25016 Narbonne Ave, Lomita, CA 90717; REAL PROPERTY AT: 2308 Donella Cir, Los Angeles, CA 90077; REAL PROPERTY AT: 3303 Palo Vista Dr, Rancho Palos Verdes, CA 90275; REAL PROPERTY AT: 26326 Ocean View Ave, Carmel, CA 93923; and SNAP PLUMBING INC.

The remaining entities are non-judgment debtor LLCs, so Plaintiff/Judgment Creditor will have to move for a charging order in accordance with Civ. Proc. Code §§ 699.720, 708.310 as to: RV ENTERPRISE, LLC; RVSS LLC; and GRAMERCY AUTO SERVICE LLC.

As modified above, Plaintiff/Judgment Creditor has made a sufficient showing that he is entitled to the relief sought under Code Civ. Proc. §§ 708.510 and 708.520. (Declaration of Luke Sheldon.) The Court notes that it has inherent power to order an accounting in aid of the execution of judgment:

By ordering an accounting, the trial court kept Palmco from being unjustly enriched by delaying execution of the judgment. The court acted within its inherent equity power and the jurisdiction it expressly retained to ensure compliance with the letter and intent of the judgment.

Any other result would reward Palmco for delaying execution of the judgment and encourage litigants in similar circumstances to present and [*226] prolong appeals as long as possible to retain the profits reaped during the delay.

(Palmco Corp. v. Superior Court (1993) 16 Cal.App.4th 221, 225-226.)

The only question is the person or entity who has the obligation to comply with the assignment order as to payments which come due as to the real property. Such person or entity must be specified in the order.